

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FOURTH SECTION

DECISION

AS TO THE ADMISSIBILITY OF

Application no. 13971/03
by OBČIANSKE ZDRUŽENIE ŽI A NECHAJ ŽIŤ
against Slovakia

The European Court of Human Rights (Fourth Section), sitting on 9 February 2010 as a Chamber composed of:

Nicolas Bratza, *President,*
Lech Garlicki,
Giovanni Bonello,
Ljiljana Mijović,
David Thór Björgvinsson,
Ján Šikuta,
Päivi Hirvelä, *judges,*

and Lawrence Early, *Section Registrar*,

Having regard to the above application lodged on 14 April 2003,

Having regard to the observations submitted by the respondent Government and the observations in reply submitted by the applicant association,

Having deliberated, decides as follows:

THE FACTS

The applicant, Občianske združenie Ži a nechaj žiť (Civic Association Live and Let Live), is an association with its seat in Bratislava. The application on its behalf was submitted by its President,

Ms D. Šteffelová. The applicant association was represented by Mr P. Kotvan, a lawyer practising in Bratislava.

The Government of the Slovak Republic ("the Government") were represented by their Agent, Ms M. Pirošíková.

A. The circumstances of the case

The facts of the case, as submitted by the parties, may be summarised as follows.

The applicant association organised a cycle-ride event in the course of which a road crossing was blocked in Bratislava with a view to pointing out the difficulties encountered by cyclists in the streets of the capital.

On 17 August 2001 the Mayor of Bratislava imposed on the applicant association a fine of 30,000 Slovakian korunas (SKK), which was then the equivalent of approximately 750 euros (EUR), for using roads in an unauthorised manner.

The applicant association appealed.

On 8 October 2001 the Bratislava I District Office upheld the Mayor's decision.

On 27 June 2002 the Regional Court in Bratislava dismissed the applicant association's motion against the above administrative decisions.

On 27 December 2002 the applicant association lodged a complaint with the Constitutional Court alleging a violation of Article 11 of the Convention and of its constitutional equivalent. The applicant association claimed, *inter alia*, SKK 10,000 as just satisfaction for non-pecuniary damage. Its representative stated that the fine imposed exceeded the financial means of the association, that its representatives had been exposed to considerable pressure and that enforcement proceedings had been brought, the costs of which exceeded SKK 50,000. As a result, the association had difficulties in obtaining grants and had been restricted in carrying out its activities.

At the request of the Mayor of Bratislava of 15 April 2003 the Bratislava II District Court discontinued the enforcement proceedings on 5 February 2004. It held that no fees were payable to the enforcement officer.

On 30 March 2004 the Constitutional Court concluded that the applicant association's right under Article 11 of the Convention had been violated. It quashed the Regional Court's judgment and returned the case to the Regional Court. It ordered the latter to reimburse the applicant association's costs incurred in the constitutional proceedings and held that the above finding of a breach of the applicant association's right to freedom of assembly constituted sufficient just satisfaction in the particular circumstances of the case.

On 12 May 2005 the Regional Court quashed the Bratislava I District Office's decision as being unlawful with reference to the finding of the

Constitutional Court. It ordered the administrative authority to reimburse the costs which the applicant had incurred.

On 3 October 2005 the District Office reimbursed the relevant sum to the applicant association. On 21 November 2005 it returned the file to the Mayor of Bratislava.

By a decision of 17 January 2007 the Mayor of Bratislava discontinued the proceedings in which the above fine had been imposed on the applicant association.

B. Relevant domestic law

1. State Liability Act 1969

Until 1 July 2004 the sphere of State liability for damage caused by wrong decisions and official misconduct was regulated by the State Liability Act of 1969 (Law no. 58/1969 Coll.).

In accordance with the courts' practice, the State Liability Act of 1969 did not allow for compensation to be awarded for damage of a non-pecuniary nature. The only exception to this rule was compensation for damage to health.

2. State Liability Act 2003

With effect from 1 July 2004 Law no. 514/2003 Coll. was enacted, replacing the State Liability Act of 1969.

Under section 3(1)(a), the State is liable for damage caused by an unlawful decision.

Section 17 of the Act provides for compensation for pecuniary damage including loss of profit and, where appropriate, compensation for damage of a non-pecuniary nature.

Pursuant to section 27, the provisions of Law no. 514/2003 apply only to damage caused by decisions which were given after its entry into force.

COMPLAINT

The applicant association complained under Article 11 of the Convention that its right to peaceful assembly had been violated as a result of the imposition of the above fine.

THE LAW

The applicant association complained that its right to peaceful assembly had been breached. It relied on Article 11 of the Convention, which in its relevant part provides:

> "1. Everyone has the right to freedom of peaceful assembly ...
>
> 2. No restrictions shall be placed on the exercise of these rights other than such as are prescribed by law and are necessary in a democratic society in the interests of national security or public safety, for the prevention of disorder or crime, for the protection of health or morals or for the protection of the rights and freedoms of others...."

The Government maintained that the applicant association had obtained appropriate redress at the domestic level and that it could therefore no longer claim to be a victim of the alleged violation.

The applicant association's representative contended that the redress obtained at domestic level was insufficient in that, in particular, the applicant association had not been compensated for damage of non-pecuniary nature.

The Court reiterates that a decision or measure favourable to the applicant is not in principle sufficient to deprive the applicant of his or her status as a "victim" within the meaning of Article 34 of the Convention unless the national authorities have acknowledged, either expressly or in substance, and then afforded redress for, the breach of the Convention (see, for example, *Dalban v. Romania* [GC], no. 28114/95, § 44, ECHR 1999-VI, with further references).

In the present case the Constitutional Court in its judgment concluded that there had been a breach of the applicant association's right under Article 11 of the Convention. It thus expressly acknowledged the violation of the Convention which the applicant association alleged before the Court.

The Constitutional Court also returned the case to the Regional Court and ordered the latter to reimburse the applicant association's costs incurred in the constitutional proceedings. Subsequently the administrative proceedings relating to the fine were discontinued and the costs incurred were reimbursed to the applicant association.

At the request of the Mayor of Bratislava the Bratislava II District Court discontinued the enforcement proceedings and concluded that no fees were payable to the enforcement officer. The Court has also noted that it was open to the applicant association to claim under the State Liability Act 1969 compensation for any further pecuniary damage which it may have suffered.

As to the applicant association's argument concerning the absence of any award for non-pecuniary damage, the Court itself has held that in certain circumstances the finding of a breach of the Convention constitutes sufficient just satisfaction for any non-pecuniary damage an applicant may have suffered (see, for example, *Zhechev v. Bulgaria*, no. 57045/00, § 63,

21 June 2007; *Mkrtchyan v. Armenia*, no. 6562/03, § 49, 11 January 2007; *Patyi and Others v. Hungary*, no. 5529/05, § 53, 7 October 2008; or *Watkins v. the United Kingdom* (dec.), no. 35757/06, 6 October 2009).

Having regard to the particular circumstances of the case, the Court finds that by the above decisions and action the domestic authorities provided the applicant association with adequate redress for the breach of its right under Article 11 of the Convention which it alleged in the present case. The applicant association can therefore no longer claim to be a victim within the meaning of Article 34 of the Convention.

It follows that the applicant association's complaint is manifestly ill-founded and must be rejected in accordance with Article 35 §§ 3 and 4 of the Convention.

For these reasons, the Court unanimously

Declares the application inadmissible.

Lawrence Early
Registrar

Nicolas Bratza
President